

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CESAR IBARRA,

Petitioner

VS.

ESMERALDA J. ALCALA,

Respondent

) Case Number: FDI-25-800880

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Cesar Ibarra (Father) and Respondent Esmeralda Alcala (Mother). Father contends the parties married on 2/14/2000 and separated on 11/1/2024, for a marriage of 24 years and 7 months. The parties have two minor children, Jacqueline (DOB: 5/21/2008) and Cesar (DOB: 10/4/2014).
- 2) On 5/21/2025, the Court adjudicated the parties' mutual requests for restraining orders and dismissed both parties' requests based on their agreement. Per the Findings and Order After Hearing filed 5/21/2025, the Court ordered Father to have visitation with the children and granted Mother temporary exclusive use of the family residence at 759 Sweeny St. in San Francisco, with each party paying one half of the mortgage payments.
- 3) On 11/24/2025, the Court heard Father's Request for Order seeking to compel the sale of the Sweeny St. residence as well as Mother's Request for Order asking the Court to set aside her default. Per the Findings and Order After Hearing filed 11/17/2025, the Court set aside Mother's default. The Court also ordered the following: "the Court finds good cause to provide Mother

1 with an opportunity to purchase Father's interest in the home. If she is unable to do so, the
2 property will be sold... As such, Mother's request for a neutral appraisal of the marital home is
3 GRANTED. The neutral appraiser shall be the Court's Evidence Code section 730 expert. By
4 11/28/25, Mother shall provide two names of proposed appraisers to Father... Father shall then
5 select one of the two options proposed by Mother by 12/5/25. The parties shall split evenly the
6 fees and costs incurred for the appraisal... The parties should work together in good faith to have
7 appraisal occur no later than 12/17/25. After the appraisal is received, Mother shall have 30 days
8 to make Father an offer to purchase Father's interest in the home... To move the sale process
9 forward in the event that Mother cannot purchase Father's interest in the marital home, Father
10 shall provide Mother with the name of three potential real estate agents no later than 11/28/25...
11 Mother shall then select one of the three options proposed by Father by 12/17/25... A review
12 hearing is set for 3/17/26... and the Court intends to evaluate progress made on the potential buy
13 out or sale of the marital home. No later than 3/6/26, each party shall submit a brief update
14 declaration explaining the status of the marital home and any specific requests they have of the
15 Court."

- 16 4) On 3/13/2026, Mother filed a Declaration wherein she attached an email from her to Father dated
17 3/12/2026 which states: "Attached are the names of 2 appraisers for your review and selection. I
18 would choose Mr. Santos. The cost of the appraisal would be split btw the two of us... Please
19 review and let me know which of the two you would like to hire..." Mother does not ask the
20 Court to make any specific orders in her declaration. According to the Proof of Service filed
21 3/13/2026, Mother's Declaration was mailed to Father on 3/13/2026.
- 22 5) At the prior 3/17/2026 hearing (per the Findings and Order After Hearing filed 4/1/2026), the
23 Court ordered the following: Father shall select the appraiser and the appraisal shall be completed
24 as soon as possible. Within 30 days of the appraisal, Mother shall inform Father if she can buy
25 him out of the property. 10 days after the 30 day period has expired, if the parties cannot agree on
26 a real estate agent, they shall each provide two names to the Court and serve the other side and
27 the Court will select the real estate agent. A review hearing was set for 6/23/2026 and the parties
28 were ordered to file and serve update declarations at least 10 days before the hearing.
29

1 6) On 6/5/2026, Father filed a Declaration. Father states that on 5/8/2026 he emailed Mother (a) a
2 Property Valuation Letter and Comparative Market Analysis prepared by licensed real estate
3 agent Sedar Juarez and (b) the names of two real estate agents. Father states Mother did not
4 respond to his email. Father asks the Court to:

- 5 a. Appoint or select a real estate agent (either Sedar Juarez or Mastafa Tinawi (both from
6 Luxe Realty Group)) to list and sell the property located at 759 Sweeny Street, San
7 Francisco, California 94134;
- 8 b. Order that the property be listed for sale within thirty (30) days;
- 9 c. Order Mother to vacate the property by a date established by the Court. Alternatively, if
10 Mother remains in exclusive possession of the property, order Mother to pay the full
11 monthly mortgage payment, utilities, and other carrying costs associated with the
12 property until it is sold or until further order of the Court;
- 13 d. Order the parties to cooperate with the listing, marketing, showing, and sale of the
14 property, including the acceptance of reasonable offers as recommended by the listing
15 agent;
- 16 e. Order Mother to reimburse Father for all mortgage payments made by Father during the
17 period of Mother's exclusive occupancy, or in such amount as the Court deems fair and
18 equitable. In the alternative, Father requests that the Court account for these mortgage
19 payments in the division of property, credits, reimbursements, or other financial
20 adjustments between the parties.
- 21 f. Grant such other and further relief as the Court deems just and proper.

22 7) Per the Proof of Service filed 6/5/2026, Father's declaration was mailed to Mother on 6/5/2026.

23 8) Mother has filed no pleadings since the prior 3/17/2026 hearing.

24 **B. Findings and Order**

- 25 1) Sedar Juarez of Luxe Realty Group is hereby appointed as the real estate agent to list and sell the
26 real property located at 759 Sweeny Street, San Francisco, California 94134.
- 27 2) Effective immediately, both parties shall be CC'd on all communications with Sedar Juarez.
- 28 3) Mother shall vacate the Sweeny Street property no later than Friday, 7/24/2026.
- 29 4) Tasks that need to be performed to list the house for sale shall begin immediately.

- 1 5) The property shall be listed for sale as soon as possible after Mother vacates the Sweeny Street
2 property.
- 3 6) The parties shall cooperate with the listing, marketing, showing, and sale of the property,
4 including the acceptance of reasonable offers as recommended by the listing agent.
- 5 7) The net sale proceeds (after all fees and taxes have been paid) shall be deposited into an interest-
6 bearing account in both parties' names. Neither party may take any amount from the net sale
7 proceeds absent a written agreement between the parties or further order of the Court.
- 8 8) The Court's jurisdiction to order reimbursement for payments towards the carrying costs of the
9 Sweeny St. property following the parties' date of separation is reserved for trial or final
10 judgment.
- 11 9) The Court will prepare the Findings and Order After Hearing.